

PERFORMANCE WORK STATEMENT (PWS)
Pesticide Monitoring and Enforcement
02/19/2026

1.0 Background:

The Bureau of Reclamation (Reclamation) administers the federal lease lands program under a long-term agreement with the U.S. Fish and Wildlife Service (Service) signed in 1977. While agricultural lease lands reside on Tule Lake National Wildlife Refuge (TLNWR) and Lower Klamath National Wildlife Refuge (LKNWR), administration and all costs associated are the responsibility of Reclamation. The primary objective of the lease lands is to comply with the Kuchel Act by providing a commercial agricultural program using proven conservation practices with benefits for wildlife. Since pesticides are commonly applied by leaseholders or commercial applicators on crops, approved Pesticide Use Proposals (PUPs) are required under DOI (517 DM), Reclamation and Service policy. In addition, many of the pesticides are toxic to humans and wildlife, thus Reclamation consulted with the Service under the Endangered Species Act (ESA) and received a Biological Opinion (1-7-95-F-26) requiring pesticide monitoring. Due to concerns about adverse impacts, it is imperative that pesticides are used in accordance with product labels, biological opinions, and policies.

To ensure pesticides are not adversely affecting wildlife, property, and humans (e.g., fieldworkers) and used according to law, Reclamation depends on a contractor with primary responsibility to enforce Federal and California state pesticide laws. The California Department of Pesticide Regulation (DPR) regulates pesticides under a comprehensive program that encompasses enforcement of pesticide use in agricultural and urban environments. DPR oversees a multi-tiered enforcement infrastructure and is vested by the U.S. Environmental Protection Agency with primary responsibility to enforce federal pesticide laws in California. DPR directs and oversees the County Agricultural (CAC) with the authority to enforce Federal and State pesticide and environmental laws and regulations at the local level. This authority is authorized under California Food and Agricultural Code, Section 11501.5. Enforcement may include fines allowed under Agricultural Civil Penalty Fine Guidelines, found in Title 3, California Code of Regulations, Section 6130 (3CCR §6130).

On private or state-owned lands, the CAC is required to permit 100% of all "restricted use" pesticides and inspect approximately 5% of all actual pesticide applications. Violators are subject to warnings or citations under the California Code of Regulations. There are no requirements for CAC's to monitor or inspect pesticide use on federal lands.

2.0 SCOPE:

The Contractor shall provide all labor, materials, equipment, supervision and facilities, unless otherwise stated herein, necessary to provide pesticide monitoring and enforcement services at TLNWR & LKNWR from the date of contract award through the performance period in paragraph 4. These services shall be performed by qualified Agricultural Inspectors or equivalents (as determined by the Siskiyou CAC) on an as-needed basis to monitor pesticide applications during the year. Such monitoring and enforcement are to ensure compliance with product labels, PUPs, and California law. The goal is to enhance the protection and safety of humans, wildlife, and property by conducting monitoring and enforcement on at least 25% of all pesticide applications.

3.0 Type of Contract:

Firm fixed priced service contract. All previous contracts have been sole sourced to Siskiyou County (e.g., R11PX20187, R16PC00078, and R2021P0046).

4.0 Period of Performance:

The period of performance shall be for one (1) base year of 12 months and four (4) 12-month option years. The Period of Performance reads as follows:

- Base Year (June 1, 2026, through May 31, 2027)
- Option Year 1 (June 1, 2027, through May 31, 2028)
- Option Year 2 (June 1, 2028, through May 31, 2029)
- Option Year 3 (June 1, 2029, through May 31, 2030)
- Option Year 4 (June 1, 2030, through May 31, 2031)

5.0 Administrative Information:

- 5.1 Recognized Holidays - Contractor is not required to perform services on federal holidays.
- 5.2 Hours of Operations - Contractor to perform services in field or county offices as deemed necessary. No federal facilities are required for services.
- 5.3 Place of Performance - The work to be performed under this contract will be performed on agricultural lands at Tule Lake and Lower Klamath National Wildlife refuges.
- 5.4 Security - None.

6.0 Government-Furnished Property:

None

7.0 Applicable Publications:

Reclamation to provide: *Annual PUPs for Lease Lands Tule Lake and Lower Klamath National Wildlife Refuges.*

8.0 Objectives:

- 8.1 Ensure pesticides are safely applied in accordance with Federal and State laws and policies
- 8.2 Enhance monitoring, inspections, and enforcement (if necessary, by citation), of pesticide applications.
- 8.3 Provide accurate PUP information to pesticide applicators.
- 8.4 Collect and submit information on pesticide use.

9.0 Specific Task:

9.1 The contractor shall perform the following tasks in accordance with this Performance Work Statement (PWS):

Task Number	Task Title/Description	Schedule
01	Scheduled Inspections	See paragraph 15
02	Enforcement	In accordance with paragraph 15
03	Reports & Documentation	In accordance with paragraph 15
04	Scheduled Meetings	In accordance with paragraph 15

9.2 Monitoring shall be performed within the general boundaries of TLNWR & LKNWR.

10.0 Contract Requirements and Other Responsibilities:

10.1 This contract is for the purpose of providing enhanced monitoring and enforcement services during scheduled and unscheduled inspections authorized by this contract and California Food and Agricultural Code, Section 11501.5.

10.2 Agricultural inspectors performing the monitoring and enforcement under this contract shall be able and must have the authority to perform the following:

- 1.1.1.1.1. Enforce federal and State of California pesticide laws.
- 1.1.1.1.2. A thorough understanding of the approved PUP's.
- 1.1.1.1.3. Physically able to conduct on-site inspections.
- 1.1.1.1.4. Trained to input and query pesticide use data as necessary.

10.3 The inspector shall have a 4-wheel drive vehicle for use in this contract. Many of the roads and areas to be patrolled can be heavily rutted, muddy, and impassable with a 2-wheel drive vehicle.

11.0 Guidance:

Operational problems will be mutually addressed and resolved by the Contracting Officer's Representative (COR) in cooperation with the inspector's assigned Supervisor and the Contracting Officer (CO).

12.0 Point of Contact:

Before work begins each year, the CAC or other representative and Reclamation COR or other representative will meet to discuss topics such as: PUP/label updates, wildlife concerns, or other questions/concerns.

13.0 Inspection and Monitoring Requirements:

- 13.1 Inspect 100% of Restricted Use pesticide applications of: Sectagon-42 and Telone II or equivalent products. For these applications, contractor shall notify COR within a minimum of 24 hours of application. Contractor shall confirm that all requirements in the PUP are observed (e.g., buffer zones compliance, proper posting, aerial hazing of wildlife, irrigation prerequisite, etc.).
- 13.2 Inspect 100% of chemigation systems to ensure compliance with PUP's, State, County, and local regulations (e.g., buffer zones and backflow devices).
- 13.3 Inspect a minimum of 25% of all actual applications as a monitoring process of general and restricted use products other than those listed in Section 2(a). Pesticides inspected should be those of particular concern to Reclamation such as: chlorpyrifos, metribuzin (on alfalfa), dimethoate, permethrin, and heavy metal fungicides (copper, manganese, and zinc products).

Dimethoate products and prior to applications, approval from COR is required. Contractor, in conjunction with the COR, shall confirm that Russian wheat aphid or brown wheat mite is present.

- 13.4 Confirm all requirements in the PUPs are observed (e.g., buffer zones, sign posting, aerial hazing, irrigation prerequisite, application equipment operation, etc.). Provide education to growers and applicators on PUP requirements, especially when more restrictive than pesticide labels.
- 13.5 Collect information of offsite seed treatment applications used on the refuges.

14.0 Specific Monitoring Terms

- 14.1. Visually monitor actual application to ensure no spraying is occurring in the buffer zones for the pesticide being applied. If over-spray occurs in the buffer zones, the County shall notify COR.
- 14.2. Spot check applications (applicators and equipment) to determine that only approved pesticides by Reclamation or U.S. Fish and Wildlife Service are being applied. If not, the County shall notify COR immediately.
- 14.3. When product label violations are encountered, they are to be addressed according to requirements within the California Food and Agricultural Code, Section 11501.5. If a Notice of Violation is not appropriate, the applicator shall be educated at the site on the correct application method. COR shall be notified of all violations.
- 14.4. Assist applicators and growers in tracking application intervals.
- 14.5. Advise applicators and growers that pesticides may not be stored on the lease lands.
- 14.6. The Contractor shall work with COR to review PUP's and advise COR of any inconsistencies or errors.
- 14.7. Input pesticide use data into an electronic file, to include Area K.

15.0 Deliverables

- 15.1 Occurrences of incidents or violations shall be reported to the COR within 48 hours by telephone during business hours at (541) 281-2584. Reports shall be prepared for all incidents using customary procedures, standards, and forms.
- 15.2 The contractor shall submit completed and signed copies of the Notice of Intent (NOI) Pesticide Preapplication Site Inspections and Pesticide Use Monitoring reports for each activity. These reports to be submitted to COR at: Seth Martin, Bureau of Reclamation, 6600 Washburn Way, Klamath Falls, OR 97603, or via email at smartin@usbr.gov within 14 days of completing activity.
- 15.3 The contractor shall prepare and submit a Field Activity Report (form below) to the COR within 14 days of completing the activity or upon request.
- 15.4 The contractor shall prepare and submit to the COR a year-end MS-Excel spreadsheet of the Pesticide Use Reports (PUR) and seed treatment database for all agricultural land

within Tule Lake and Lower Klamath National Wildlife Refuges, to include Area K. At a minimum, this summary shall include the following data: lot number, date of application, product, rate, EPA number, acreage, method, and crop type. The PUR Summary is due on or before November 1 of each year.

16.0 Performance Assessment Plan

- 16.1. **Monitoring Performance.** During the evaluation period, the COR will track Contractor performance. Interim (mid-term) evaluations may be provided to identify strengths and weaknesses in the Contractor's performance during the period being evaluated. At the end of the period, the COR will assess the Contractor's performance in accordance with the Quality Assurance Surveillance Plan (QASP) and report to the CO.
- 16.2. **Contractor Self-Assessment.** Following each evaluation period, the Contractor may provide a written self-assessment of its performance to the COR to be considered in its report to the CO. The self-assessment shall be submitted not later than 5 working days after the end of each evaluation period. The self-evaluation shall not exceed 1 page per PRS element. The self-assessment shall address both the strengths and weaknesses of the Contractor's performance during the evaluation period. Where deficiencies in performance are noted, the Contractor shall describe the actions planned or taken to correct such deficiencies and avoid their recurrence. The self-assessment itself will NOT be the basis for the Disincentives determination.
- 16.3. **COR Recommendation.** The COR will consider all evaluations and any other pertinent information, including Contractor self-assessment, and will prepare a report to the CO with findings and recommendations. The Contractor will be provided a copy of the draft findings and recommendations of the COR and will be afforded the opportunity to identify factual errors. The COR's draft recommendation is not subject to negotiation and the COR will not engage in discussions with the Contractor. Any errors identified by the Contractor will be addressed by the COR in its final report. The Contractor will be provided a copy of the final COR report at the same time the report is submitted to the CO.
- 16.4. **Payment Determination.** The CO may meet with the COR to discuss the COR's report. The CO will make a final determination in writing as to the percentage of work successfully completed, and the resulting payment to be made. A copy of the determination will be provided to the Contractor no later than 45 calendar days after the end of the period being evaluated. All CO decisions regarding Disincentives are unilateral decisions made solely at the discretion of the Government.
- 16.5. **Deduction.** Notwithstanding any other clause of this contract, deduction of the Disincentive will be made within the later of 60 days after the end of the evaluation period or 30 days after receipt of an approved invoice.
- 16.6. **The Quality Assurance Surveillance Plan is one evaluation method the government uses to surveillance performance to determine whether the Contractor meets the standards of performance as defined in the PWS. The absence of a QASP for any contract requirement,**

however, shall not detract from its enforceability or limit the rights or remedies of the government under any other provision of the contract in determining the quality of the Contractor performance.

**PERFORMANCE REQUIREMENTS SUMMARY AND
QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)**

Performance Requirement Summary (PRS)	Acceptable Quality Level	Method of Surveillance
01 Scheduled Inspection: Inspect for adequate protection of persons, property, and wildlife resources on the refuge lands and roads.	A qualified inspector is provided throughout the growing season as in accordance with the schedule 100% of the time.	COTR Random review of Inspection Form(s) and Field Activity Report.
02 Enforcement: Provide enforcement of state and federal pesticide laws as necessary and authorized,	All violations are reported to COR no later than 48 hours 100% of the time.	Review of Field Activity Reports.
03 Reports and Documentation: All Pre Application, Pesticide Inspection, and Pesticide Use Reports	Timeliness: All required reports are received within 2 weeks of the due date 100% of the time.	Review of Reports.
04 Scheduled Meetings: Participation in meetings related to pest control or pesticide issues.	Attendance: 100% of all meetings attended as requested.	Review of meeting notes.

FIELD ACTIVITY REPORT

Indicate hours spent doing the activities listed below:

[illegible]